

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

February 25, 2013

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Mr. Brown, Ms. Broyles, Mr. Cook, Mr. Luna, Dr. Rinne, Mr. Shanor, Mr. Valdez and Ms. Williams. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Brown, and pursuant to support received by Dr. Rinne and Ms. Broyles, agenda item #11 was removed from the Consent Agenda. Upon request by Ms. Broyles and pursuant to support received by Mr. Brown and Dr. Rinne, agenda item #15(c) was removed from the Consent Agenda. Upon request by Mr. Brown and pursuant to support received by Mr. Allen and Ms. Broyles, agenda item #15(a) was removed from the Consent Agenda. Mr. Allen moved to approve remaining Consent Agenda items, seconded by Mr. Luna. Motion carried. Voting "yes" -- all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on February 11, 2013. Motion (per Consent Agenda) carried.

Mr. Shanor moved to change the agenda order of the day to bring forward Item #14(a), a proposed preliminary plat, immediately prior to Item #8 to allow for consecutive discussion and action affiliated with an ordinance on second reading for re-zoning the property (Item #8) pertaining to The Bluffs, 9th Filing, located approximately 1,500 feet north of the intersection of Converse Ave. and Ogden Road, seconded by Mr. Brown. Mayor Kaysen clarified debate on the motion was limited to topic of the motion only. Motion carried. Voting "yes" -- all members of the governing body.

Mr. Brown declared a conflict of interest (business interest in voucher payable to Ameri-Tech HVAC Services) and vacated Council Chambers. Mr. Valdez moved to approve payment of vouchers as presented, seconded by Mr. Luna. Upon inquiry regarding a voucher payable to Chase Park Grants, LLC, Matt Ashby, Planning Services Director, advised Chase Park services were obtained to write grant applications and submit them on behalf of the City and that funding awarded is assisting with the Capitol Basin West Edge Project. It was noted that seeking additional funding opportunities leverages 6th penny sales tax dollars for the project. Mr. Ashby provided information on the dollar amount of grants that have been awarded to date through Chase Park's efforts. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown returned to Council Chambers.

Mayor Kaysen opened a public hearing to receive comments and input for renewal of existing

City liquor licenses (retail, restaurant, limited retail, resort, bar and grill licenses, and microbrewery permits) filed with the City Clerk's Office. William Overling expressed concerns regarding renewal of the retail liquor license held by Cadillac Ranch Bar, Inc. and cited Wyo. Stat. §12-4-104(b)(i), which states that if evidence is presented at the hearing that the welfare of the people residing in the vicinity of the proposed license premises shall be adversely affected then the license should not be renewed. He advised he and other residents in the neighborhood adjacent to the bar have issues with noise levels, citing EPA levels; parking congestion, including vehicle lights; lack of signage directing bar patrons to an off-site nearby parking area; debris found in their yards and on the streets; fighting, vandalism, and undesirable activities by bar customers affecting the area. He reviewed incidences where police officers have had to respond, and submitted a petition signed by residents in the area requesting the liquor license for Cadillac Ranch either be revoked or not be renewed. Kevin Beers, President, Cadillac Ranch Bar, reviewed past communications he has had with Mr. Overling and residents in the vicinity and stated his openness to further communications; advised he has voluntarily met with police officers regularly to ensure compliance with laws and stated he is trying to be a good neighbor. He further reviewed noise level testing conducted by police officers, noting it has never exceeded the allowable decibel levels, and explained that during activities surrounding last year's Cheyenne Frontier Days time frame he had cancelled plans for a band to perform outside of the building due to neighborhood concerns. In response to Mr. Overling's comments, he stated he is looking into installing a sound barrier to help with vehicle lights and noise issues, noting cost expense and referencing a raised fence he had previously built to help address complaints, and that corrections to signage informing patrons of the off-site parking area will be made. He stated he is sensitive to neighbors' concerns and is trying to rectify them, however, he has no control over patrons and their activities after the business closes and they are off the premises. Rebecca Schwab and Stephanie Forney, advising they live in close proximity to the bar, each discussed their concerns the bar's effect has had on the neighborhood. Topics discussed included: Fighting, parking and noise issues; undesirable activities and concerns affecting their family and personal property, and the notification process when the bar was first approved for its license. Mike Dieters, representative of Prevention Management of Laramie County and local substance abuse professional, discussed social alcohol influence factors affecting underage drinking, and family and individual effects of alcohol abuse. Upon inquiry regarding violations within the past year at D.T.'s lounge on Lincolnway, Officer Steve Neisen, Cheyenne Police Department, advised compliance issues, including better signage involving designated smoking areas (per city code), have been corrected by the owner. Comment followed on underage sales compliance checks and inquiry was made whether licensee representatives were present at the meeting for the following establishments: Albany, Old Chicago, Keg 'n Kork, Anderson's Other Corner, Redwood, Scooters, D.T.'s Liquormart, Re-o-na Sushi Restaurant, and Olive Garden. Bryan Grzegorzczuk, Redwood Lounge owner, acknowledged failure of an underage service compliance check at the establishment, and explained the incident involved mistaken identity of a customer by staff and that the employee has been re-trained. Upon inquiry regarding compliance check failures at Re-o-na Sushi Restaurant, Officer Niesen advised he met with the manager, noting a language barrier affected previous communications, and stated alcohol server training requirements had been further explained and employees are now TIPS trained. Upon inquiry regarding the building occupancy capacity within the Cadillac Ranch Bar, Mr. Beers advised Fire Dept. staff have checked the capacity level and he explained how the occupancy level is monitored. There being no further comments or discussion, Mayor Kaysen stated the purpose of the public hearing had been met and referred the renewals to Finance Committee for review. He noted the Committee will meet on Monday, March 4 at 11:00 a.m. in Room 122, Municipal Building.

Preliminary Plat for The Bluffs, 9th Filing, a tract of land situated in a portion the East Half of the East Half (E½E½) of Section 20 and a portion of the Southwest Quarter of the Southwest Quarter of the Northwest Quarter (SW¼ SW¼ NW¼) of Section 21, T.14N., R.66W., 6th P.M., Cheyenne, Laramie County, Wyoming (Annexation in process) (located approximately 1,500 feet north of the intersection of Converse Avenue and Ogden Road). Due to a family relationship, Dan White, City Attorney, declared a conflict of legal interest and excused himself from the dais, noting that any legal advice requested for the preliminary plat (Agenda Item #14(a)) as well as two subsequent ordinances on the agenda (Agenda Items #8 and #9) would be provided by John Ridge, Deputy City Attorney. Mr. White then vacated Council Chambers with Mr. Ridge joining the governing body on the dais. Reporting for Public Services Committee, Mr. Allen stated there was no recommendation on the item from the Committee. Mr. Allen moved to deny acknowledgment of the preliminary plat, seconded by Mr. Cook. Motion carried. Voting “yes” -- all members of the governing body.

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from A-1 Agricultural and Rural Residential District to MR-2 Medium Density Residential – Developing District for a tract of land situated in a portion the East Half of the East Half (E½E½) of Section 20 and a portion of the Southwest Quarter of the Southwest Quarter of the Northwest Quarter (SW¼ SW¼ NW¼) of Section 21, T.14N., R.66W., 6th P.M., Cheyenne, Laramie County, Wyoming, to be known as the Bluffs, 9th Filing (located approximately 1,500 feet north of the intersection of Converse Avenue and Ogden Road). Mr. Allen moved to approve on second reading, seconded by Ms. Williams. Comments followed on procedural concerns with approving the zone change prior to annexation of the property being completed. Mr. Allen moved to amend by changing the wording contained in Section 7. to read as follows, seconded by Mr. Shanor: “ ... That this ordinance shall be in full force and effect upon its approval and publication and upon successful filing of an annexation ordinance with the County Clerk and Ex-officio Register of Deeds for Laramie County, Wyoming.” Discussion followed and included the following: Procedural order of actions involving affiliated agenda items pertaining to annexations, re-zoning, preliminary plats, and final plats; amendment allowing the re-zoning ordinance to move forward and be “in the wings” when annexation becomes effective; comments in support as well as non-support of the amendment; concerns with approving a zone change prior to annexation and affiliated plat actions and taking re-zoning action when future annexation and development may not occur, and linking annexation and zoning actions together time-wise. Upon inquiry, Matt Ashby, Planning Services Director, advised at this time staff has not weighed-in on a definite position on having the zone change effective with a pending/future annexation, and raised a concern that, potentially, a zone change could be “hanging out there” for a long period of time without annexation moving forward in a timely manner. Motion to amend carried. Voting “yes” -- all members of the governing body with the exception of Mr. Brown, Mr. Valdez and Mayor Kaysen voting “no”. Comment was made that, hopefully, affiliated platting issues could be worked out. Main motion as amended carried. Voting “yes” -- all members of the governing body with the exception of Mr. Brown and Mr. Valdez voting “no”.

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from P Public to NB Neighborhood Business for Lot 1, Block 4, Storey Boulevard Extension, Cheyenne, Wyoming (located east of and adjacent to Converse Avenue,

approximately one-quarter mile south of Storey Boulevard). Mike Langhoff commented that when the current owners acquired the property they were aware of the public zoning classification, and stated he was opposed to the zone change. Mr. Allen moved to approve on second reading, seconded by Ms. Williams. Comments followed regarding the need to change the zoning as the property is no longer owned by a public entity. Upon inquiry, John Ridge, Deputy City Attorney, stated his belief that the zoning classification should be changed, noting that without making a change results in no property value being realized by the developer/owner. Mayor Kaysen clarified the purpose of a "P" public zone is for properties owned by the City or public entity. Upon inquiry, Matt Ashby, Planning Services Director, verified within the code (i.e. Section 5.6.1(c), Unified Development Code), the context of Public District Standards states "If property or a portion of property with this classification is sold or transferred to a nongovernmental entity, the classification shall be changed before the property can be utilized." It was noted the property, previously owned by the City, is now owned by a consortium of private investors. Reference was made to a past attempt to change the property's zone type by the investors and that the proposed change to neighborhood business may be more appealing to the vicinity. Motion carried. Voting "yes" -- all members of the governing body with the exception of Mr. Luna voting "no". Mr. Ridge vacated the dais and Mayor Kaysen noted for the record that Mr. White had resumed his seat on the dais.

RESOLUTION - Re-appropriating the Fiscal Year 2013 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 and 16-4-113. Motion (per Consent Agenda) carried. (#5477)

RESOLUTION - Directing the City Attorney to petition the First Judicial District Court, Laramie County, Wyoming, for an order suspending, for a period not to exceed thirty (30) days, Retail Liquor License No. 39 issued by the City of Cheyenne to Stillwater, Inc., dba 'Mingles Bar'. Anthony Reyes, attorney with the law firm of Riske and Salisbury, representing Stillwater, Inc., advised since the Finance Committee meeting negotiations through City staff and the City Attorney's office have been held and a settlement agreement has been reached. He stated by reaching the agreement, the licensee certainly does not condone underage drinking and they are not trying to skirt their responsibilities in any way, and that by entering into the agreement it is more economical to Mingles and the City than to proceed with a District Court hearing. Mr. Reyes noted that under the provisions of the agreement, Mingles Bar will close completely for 2 consecutive weeks, which is a substantial financial hardship, and would then be on probation for 6 months. He further advised that Mingles voluntarily initiated a partial (bar area) business closure on Feb. 1 and 2 to provide alcohol server re-training to its staff; that a new person has been hired to review surveillance tapes relative to legal age sales compliance, and that all employees associated with the violations have been terminated. Mr. Reyes requested approval of a substitute resolution, which addresses the settlement agreement, and expressed his belief that the compromise was fair to both parties, stating that rather than being an adversary in court the licensee wants to partner with the City to curb underage drinking. Upon inquiry, he reviewed a provision of the agreement addressing any future citations for violations of Wyoming Statutes or municipal codes regarding underage sales, possession or consumption in or upon the premises of Mingles Bar, which would make the settlement agreement null and void, and advised all employees were sent to TIPS re-training on Feb. 5th. He clarified that the former manager is still part owner of the business but is not involved in day-to-day operations. Upon inquiry, he provided information on the number of employees the business has and their duties; type of security and oversight in place (i.e. cameras, doormen, managers); identification scanners that are being researched for acquisition to assist, in addition to

visual inspection of proof of identification, in detecting false I.D.s, and time frame when the owners became aware that their liquor license may be in trouble due to the number of violations that had occurred. Upon inquiry, Terry Wilson, one of the owners of Mingles, advised the building occupancy capacity of the bar is over 100 persons; that karaoke music is sometimes held on Fri. and Sat. nights; confirmed that during the 2 week closure the entire establishment would be closed; reviewed elements of identification scanners that are being researched for compatibility with such issues as military and out-of-state I.D.'s; noted his potential openness to the possibility of hiring off-duty police officers on the weekends; provided information on individuals comprising corporate ownership of the business, and explained what entailed a draft beer special as advertised on the business' website. Reporting for Finance Committee, Mr. Brown moved to adopt, seconded by Mr. Valdez. Mr. Brown moved to amend by substitute resolution which includes a proposed settlement agreement referenced as Exhibit A, seconded by Mr. Shanor. Upon inquiry, Mr. White provided a summarization of settlement agreement provisions in which Mingles would voluntarily close all operations for 14 consecutive days, and which addresses the scenario of any future violations regarding sales to or possession by an underage person within the designated time frames set out in the agreement that could result in the City moving forward with a District Court filing to request suspension of the license for a period of not more than 30 days. Mr. White confirmed that provisions of the agreement pertain to both the bar and package store operations. Chief Brian Kozak, Cheyenne Police Dept., commented that the violation restrictions in the proposed agreement pertain to underage alcohol violations and not all laws involving liquor. Discussion followed and included the following topics: Zero tolerance involving underage sales by licensees; how the time frame for business closure was determined; concern with negotiating a settlement involving violations of law; support for as well as against the proposed amendment involving a settlement agreement; agreement providing for an immediate penalty vs. time frame involving a court process and unknown certainty of any penalty that may be imposed through a court decision, and procedural scenario if the resolution as originally submitted, and not the substitute, was adopted. During discussion and upon inquiry, Mr. White confirmed that if the resolution as originally presented was passed and a petition seeking suspension was filed with District Court, and assuming the court agreed and an order was issued suspending the liquor license for a specified time frame, Mingles could continue to remain open during the suspension time frame and conduct non-liquor related business operations. Upon inquiry, Mr. Reyes advised Mingles would not be willing to agree to change wording in the agreement to indicate that violations include any violation of City ordinance, explaining that since underage alcohol sales infractions is the issue that has put Mingles in the current situation to begin with, the proposed violation provisions in the agreement is what has been agreed upon. Discussion continued on the 2 consecutive week closure; effects of any violation under the terms of the agreement; whether approving of an agreement would be setting a precedent; identifying an effective deterrent as a penalty and handling any future similar activity by other licensees on an individual basis; whether a different closure time period would be considered by the licensee; unknown consequences involving pursuit of a court filing, and the agreement negotiation process and involved parties. During discussion and upon inquiry, Mr. Reyes stated that during negotiation discussions the dates for the 2 week closure time frame (March 18 thru March 31, 2013) were requested by Mingles and they are not willing to change the decided upon time frame at this time. Upon inquiry whether any communication had been made with District Court, Mr. White verified there has been no communication as it is inappropriate for any discussion on the matter to be held with a district court judge due to the potential filing that might be before them in court. Mayor Kaysen provided information that negotiations were conducted between respective legal counsel for each party, and Mr. White reviewed the history of the negotiations held with Mingles and how the proposed settlement was reached. Motion to amend carried. Voting "yes" -- all

members of the governing body with the exception of Ms. Broyles, Mr. Cook and Ms. Williams voting “no”. Main motion to adopt as amended by substitute carried. Voting “yes” -- all members of the governing body. (#5478)

Following a brief recess, Mayor Kaysen reconvened the meeting at 8:20 p.m.

[CA] RESOLUTION - Approving the Cheyenne Area Street Enhancement Toolbox. Motion (per Consent Agenda) carried. (#5479)

RESOLUTION - Approving the West Lincolnway Streetscape plans (landscape and fence). Darren Rudloff, Visit Cheyenne, spoke in support of the planned enhancements, noting the location as a major gateway entrance into the community and major business improvements that have occurred over the past few years, and advised the project has the support of many entities and organizations, such as U.P.R.R., WYDOT, Visit Cheyenne, Cheyenne LEADS, Cheyenne Chamber of Commerce, Boys and Girls Club and Tyrrell-Doyle. He advised of outside funding and assistance participation and commented that the City’s portion for annual maintenance expenses is estimated to be \$11,000. Dale Steenbergen, President/CEO, Greater Cheyenne Chamber of Commerce, stated that many individuals have been working on this project for several years and expressed concern with a proposed amendment to the resolution that would reduce the amount of landscaping. He spoke in support of maintaining the original amount of landscaping, noting the City should meet the same requirements as it places on others when improving or developing property, and commented on West Lincolnway being “the front door” to the community. Gene Burchett, chair, Kiwanis Landscape Committee, provided a brief history of the Committee and spoke in support of the project and the need to complete Phase I of the enhancements. He noted there is a prospect of more money for the project through grant opportunities. Mr. Allen moved to adopt, seconded by Mr. Luna. Mr. Allen moved to amend to include the condition that the proposed living landscape area to be maintained by the City be reduced by 75%, seconded by Mr. Shanor. It was noted funding for the plan is related to another agenda item (re: Agreement with WYDOT for West Lincolnway Project) that will be discussed at the next Finance Committee meeting. Rick Parish, Parks and Recreation Director, spoke in support of community beautification projects but advised the department needs funding dollars in order to maintain the project, citing other projects involving right-of-way beautification that have resulted in personnel and maintenance costs and involve such areas as fencing, trash pickup, traffic poles, signs, and curbs and gutters. Upon inquiry pertaining to estimated annual City maintenance costs, contained in a February 15, 2013 letter from Tom Mason, Director, Metropolitan Transportation Organization, to Council members, Mr. Parish advised the department’s budget has remained stagnant for many years and provided information on the different areas and volume of acres the department maintains that involve personnel and equipment. He noted the department has adapted and adjusted procedures in many ways to meet needs and that several maintenance areas are the result of other department projects involving beautification of rights-of-way. Mr. Burchett submitted letters [on file with City Clerk’s office] from the Boy Scout Council and Boys and Girls Club offering their assistance to the City with picking up trash and weeding within the project area. Mr. Steenbergen reiterated his support on maintaining the initial level of landscaping and encouraged maintenance funding be committed for the good of the community. Upon inquiry, Mr. Parish provided information on Parks and Recreation department staffing levels. Discussion included support for the project overall and beautification of the City’s entryways; appreciation for community involvement; prioritization of maintenance funding, and concern with on-going funding. Motion to amend failed. Voting “no” -- all members of the governing body. Discussion on the main motion

followed and, upon inquiry, included information by Mayor Kaysen that the area proposed for beautification is part of WYDOT's right-of-way, who has jurisdictional authority, and that WYDOT, the City and many community members have taken the initiative to work on planning the beautification efforts for many years. Motion to approve carried. Voting "yes" – all members of the governing body. (#5480)

Use Agreement to permit Level 3 Communications, LLC, limited use of the public right-of-way for the installation of fiber optic communications systems and setting a fee. Mr. Brown moved to approve, seconded by Mr. Valdez. Mr. Brown moved to amend by substitute, seconded by Mr. Valdez. Upon inquiry, Dan White, City Attorney, advised that due to an oversight the original agreement did not include insurance provisions and that the substitute contains that language which will protect the City. Motion to amend carried. Voting "yes" -- all members of the governing body. Main motion as amended carried. Voting "yes" -- all members of the governing body. (#5963)

[CA] Professional Services Agreement between the City of Cheyenne and Noel Griffith, Jr. & Associates Architects for the provision of schematic design, design development, construction documents, bidding documents, bidding assistance and construction management for the Municipal Pool Renovation and Expansion Project (1% Specific Purpose Sales & Use Tax). Motion (per Consent Agenda) carried (amount not to exceed \$639,550.00). (#5964)

Professional Services Agreement between the City of Cheyenne and DHM Design Corporation for the provision of schematic design, design development, construction documents, bidding documents and bidding assistance for the Converse Softball Complex Renovation project (Menard property sale proceeds). Frank Cole commented on the need for sidewalks, curbs and gutters along portions of Converse and Airport Parkway to be included in the plan and that fence adjustments and area landscaping also be incorporated as other private developments require. Rick Parish, Parks and Recreation Director, advised the City currently does not have a plan for the entire area, noting the agreement is for design for the complex, and that a past master plan that was prepared is the property of the Cheyenne Extreme Softball group. Mr. Brown raised a point of order questioning whether a motion was on the floor with Mayor Kaysen stating no motion had yet been made and asking for a motion before discussion continued. Mr. Brown moved to approve in an amount not to exceed \$119,843.00, seconded by Mr. Valdez. Comments followed in support of the project. Motion carried. Voting "yes" -- all members of the governing body. (#5965)

[CA] Agreement between the City of Cheyenne and Cheyenne Umpires Association to provide umpire services for the 2013, 2014 and 2015 Softball Seasons (softball registration revenue) -- referred to Finance Committee.

[CA] Agreement for Juvenile Compliance and Diversion Officer Services between Laramie County, the City of Cheyenne, and the Laramie County Community Juvenile Services Joint Powers Board for reimbursement of dual-commissioned Juvenile Diversion Officer's salary (Federal Office of Juvenile Justice and Delinquency Prevention Grant) -- referred to Finance Committee.

[CA] Agreement between the Wyoming Department of Transportation and the City of Cheyenne for the West Lincolnway Project (Wyoming Department of Transportation funding) -- referred to Finance Committee.

[CA] Real Estate Purchase Agreement between the City of Cheyenne and W. E. Dinneen, Inc., for the purchase of real estate located at 405 West 18th Street, 1704 Pioneer Avenue, 410 West 17th Street, and 416 West 17th Street, Cheyenne, Wyoming (1% Specific Purpose Sales & Use Tax) -- referred to Finance Committee.

[CA] Amendment No. 1 to Contract No. 5956, Contingency and Development Agreement, between the City of Cheyenne and parties involved in the Microsoft Dataplant Demonstration Project to effect a date change -- referred to Finance Committee.

[CA] Consideration of Bid #R-17-13 for furnishing two new medium/heavy duty transit buses with wheelchair lifts for the City of Cheyenne, Public Works Department, Transit Division (partial State Loan and Investment Board and Wyoming Department of Transportation funds). Motion (per Consent Agenda) carried (accept bid submitted by Creative Bus Sales, Phoenix, AZ in an amount not to exceed \$193,786.00).

[CA] Consideration of Bid #R-19-13 for furnishing ballistic vests for the Police Department from Skaggs Uniforms, Salt Lake City, Utah (Miscellaneous Federal Grants). Motion (per Consent Agenda) carried (amount not to exceed \$35,596.50).

Appointments of Earl B. Kincheloe to the Cheyenne Housing Authority Board; Beth Pratt to the Mayor's Council for People with Disabilities, and Nicholas Pickering to the Building Code Board of Appeals. Mr. Brown moved to approve, seconded by Ms. Broyles. Motion carried. Voting "yes" -- all members of the governing body with the exception of Mayor Kaysen who did not vote (Mayoral appointments).

[CA] Request to approve, pursuant to Wyo. Stat. §12-5-402 (b), a sponsor relationship between Cheyenne Frontier Days, Inc. and Miller/Coors, a malt beverage industry representative, in conjunction with the 2013, 2014 and 2015 annual Cheyenne Frontier Days community event. Motion (per Consent Agenda) carried.

Under other business:

Pete Laybourn expressed his concerns regarding a neighborhood issue along Pershing Blvd. from Converse to Seymour, particularly the intersection area of Duff and Pershing. He briefly reviewed past history of the intersection relative to a traffic light; commented on increased vehicular and pedestrian traffic and safety issues, and noted private business investments and improvements and economic vitality within the area. He requested the governing body consider a professional evaluation involving traffic volumes, pedestrian access and traffic practices relative to whether traffic lights and pedestrian crosswalks would be appropriate. Mr. Laybourn stated with the pending reconstruction project work planned for Pershing Blvd. that this would be a good opportunity to also address this topic. Michelle McMahon, President/CEO, Frontier Access & Mobility, also discussed vehicle and pedestrian safety concerns involving the Duff and Pershing intersection, and spoke in support of implementation of a traffic light and crosswalks. Connie Cook, business employee in the near vicinity, also conveyed pedestrian safety concerns, relating a recent accident that had occurred at the intersection, and stated that people can not safely cross the street. Support for a traffic study for the intersection area was voiced by

Mr. Allen and Ms. Williams.

Brad Harrington commented on a recent public hearing before the Planning Commission with regard to input on proposed changes to the Unified Development Code, and expressed concerns on the hearing format not being conducive to receiving comments from those who were in attendance. He stated his opposition to the UDC from a personal property rights standpoint and encouraged Council members to repeal it. M. Lee Hasenauer, Laramie County Commissioner, inquired about pending dates relative to future meetings concerning proposed UDC changes with Mayor Kaysen advising that meeting dates have not yet been set as input that has been received is being reviewed. He added that there will be a City Council work session scheduled prior to changes coming before the City Council and that public notices of the meetings will be provided. Barbie Harrington expressed her viewpoint of the public hearing held on the UDC, conveying her belief that not all of the public's input (i.e.: written materials) was shared with Commission members. Comment was made that meetings involving the UDC changes should be better publicized.

Buck Holmes, Laramie County Commissioner, advised he is the Commission's delegated representative to attend City Council meetings and he was available for any communication purposes. He stated Commissioners Amber Ash and M. Lee Hasenauer were also in the audience to further communication between the commissioners and council members.

Congratulation was extended to the Tyrrell-Doyle Chevrolet family for celebrating their 75th anniversary of doing business in Cheyenne.

There being no further business to come before the governing body, the meeting was officially adjourned at 9:22 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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